

25CHCV03274 25CHCV03274

County: los-angeles

Division: Civil Law and Motion

Department: F51

Hearing date: 2026-07-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF51%2C07%2F10%2F2026

Source SHA-256: 6030c061706b3e6801a1a8f49d944f7f3a546850078127d7daf83ee74aa2a083

Case Number: 25CHCV03274 Hearing Date: July 10, 2026 Dept: F51

LOS ANGELES SUPERIOR
COURT

NORTH VALLEY DISTRICT

DEPARTMENT F-51

JULY
9, 2026

MOTION FOR LEAVE TO FILE
CROSS-COMPLAINT

Los
Angeles Superior Court Case # 25CHCV03274

¿

Motion
Filed: 4/24/26

MOVING

PARTY: Defendants

Isaac Kahen Kashani, DDS; and Northridge Advanced Dentistry (collectively, "Moving Defendants")

RESPONDING

PARTY: Plaintiffs

Huong Tu Dang; and Anh Hoang Thi Che (collectively, "Plaintiffs")

NOTICE:

OK

RELIEF

REQUESTED: An order granting Moving Defendants
leave to file a cross-complaint.

TENTATIVE

RULING: The unopposed
motion is granted. Moving Defendants to separately file and serve their
proposed Cross-Complaint within 20 days of this order.

BACKGROUND

This is a medical malpractice action in which Plaintiffs, a
married couple, allege that on 7/24/24, Defendants negligently treated
Plaintiff Dang for a tooth extraction, causing him injury. (Compl. ¶¶ 13–17.)
On 9/11/25, Plaintiffs filed their complaint, alleging against four named Defendants
the following causes of action: (1) Negligence; and (2) Loss of Consortium. On 11/17/25,
Moving Defendants filed their answer.

On 4/24/26, Moving Defendants filed the instant motion. No opposition
has been filed to date. On 6/24/26, Moving Defendants filed a notice of
non-opposition to the instant motion.

ANALYSIS

"A party
shall file a cross-complaint against any of the parties who filed the complaint
or cross-complaint against him or her before or at the same time as the answer
to the complaint or cross-complaint. ... A party shall obtain leave of court to
file any cross-complaint..." (Code Civ. Proc. § 428.10.) If the proposed cross-complaint is
permissive, leave of court may be granted "in the interest of justice" at any
time during the course of the action. (Code Civ. Proc. § 428.50, subd. (c).) On
the other hand, if the proposed cross-complaint is compulsory, then leave must
be granted so long as the defendant is acting in good faith. (Code Civ. Proc. §
426.50.)

Here, Moving

Defendants argue that “the proposed cross-complaint arises out of the same transaction or occurrence alleged in the complaint and seeks indemnity from a party whose conduct is directly implicated in the underlying claims. There is no showing of undue delay, prejudice, or bad faith. Accordingly, leave to file the cross-complaint falls squarely within the scope of relief California courts routinely permit.” (Defs.’ Mot. 5:25–6:2.) Moving Defendants assert that their “counsel only recently became aware of an indemnification provision in the contract with co-defendants Perline Akhavan and Caitlin Miller Caraballo, which gives rise to the proposed cross-claims.” (Id. at 6:21–23.)

Moving Defendants’

proposed cross-complaint alleges against co-defendants Akhavan and Caraballo the following causes of action: (1) Equitable Indemnity; (2) Implied Indemnity (3) Declaratory Relief; and (4) Express Indemnity. (Ex. A to Am. Decl. of Brandon Simanian.) The Court notes that no opposition has been filed against the instant motion. Accordingly, the Court finds that Moving Defendants are acting in good faith, and therefore, in the interest of justice, may file their proposed cross-complaint.

CONCLUSION

The unopposed motion is granted. Moving Defendants to separately file and serve their proposed Cross-Complaint within 20 days of this order.